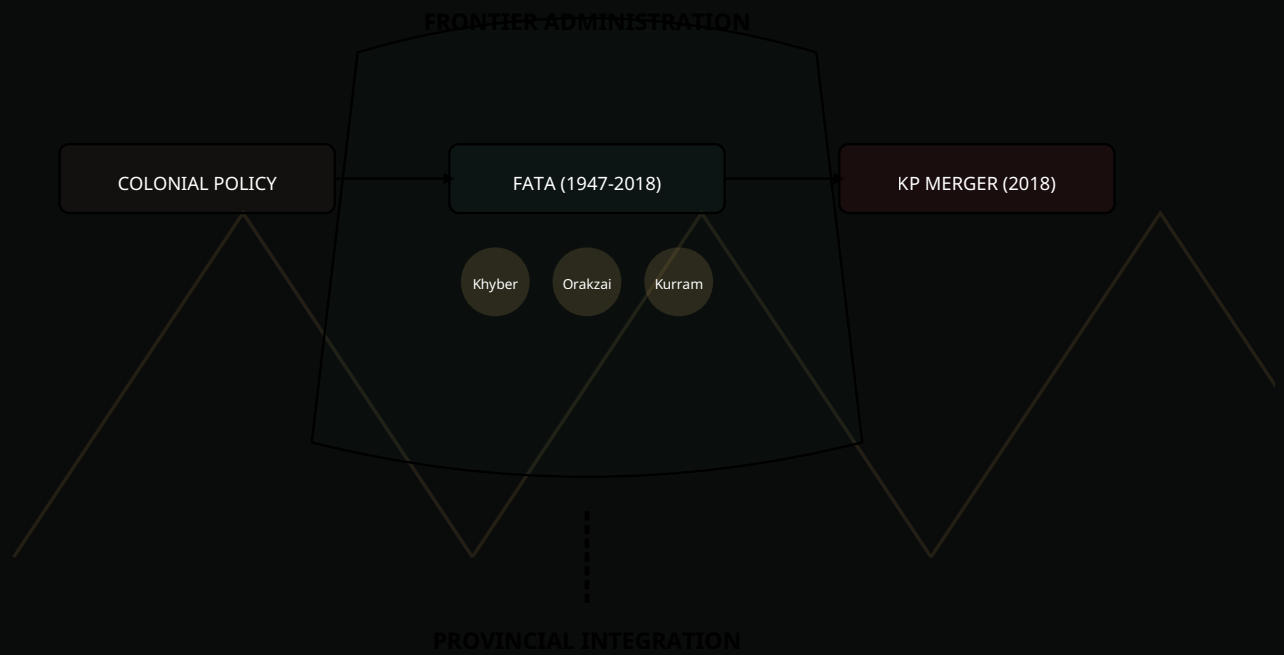


TRIBAL AREAS & PAKISTAN

“A special administrative relationship, and the long road toward integration.”

For much of Pakistan's history, some of the country's most mountainous western territories were governed through a political arrangement different from the ordinary provincial system. They were commonly described as the Tribal Areas. The name sounds simple; the history was not. These territories contained different peoples, languages, valleys, tribal structures, and political experiences. For Orakzai, the story became particularly important because the area known as Orakzai Agency formed part of the former Federally Administered Tribal Areas (FATA). Understanding Orakzai's modern political history therefore requires understanding the larger system around it. This was a relationship between community and state, shaped first by colonial frontier policy, continued after Pakistan's independence, and eventually changed through constitutional reform.



“A special administrative relationship: the long road from colonial frontier policy to provincial integration.”

WHAT WERE THE TRIBAL AREAS?

The term "Tribal Areas" referred to specific territories defined by the Constitution of Pakistan. Under **Article 246**, these were divided into two main categories: the **Federally Administered Tribal Areas (FATA)** and the **Provincially Administered Tribal Areas (PATA)**. While PATA was administratively linked to the provinces, FATA maintained a direct relationship with the federal government through the President.¹⁶

ARTICLE 246: TRIBAL AREAS

FATA

Federally Administered

PATA

Provincially Administered

“The constitutional categorization of Tribal Areas under the 1973 Constitution.”

WHAT WAS FATA?

FATA was an administrative category comprising seven agencies and six frontier regions. Its defining feature was **Article 247**, which granted the President of Pakistan executive authority. No Act of Parliament applied to FATA unless the President directed, and the jurisdiction of the Supreme Court and High Courts was restricted. This created a "special" administrative space where the state governed through Political Agents and the Frontier Crimes Regulation (FCR).^{1 4}

EXECUTIVE

President



AGENT

Political Agent



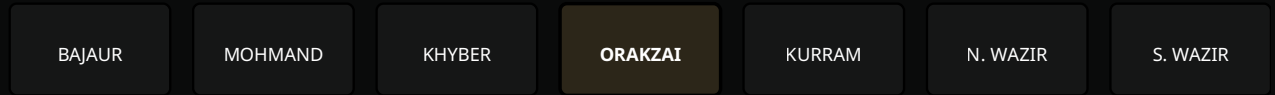
MECHANISM

Maliks / Jirga

ORAKZAI AGENCY (1973–2018)

Orakzai was one of the seven federal agencies. It was created on **November 3, 1973**, by Prime Minister Zulfikar Ali Bhutto, having previously been part of Frontier Region Kohat. As an Agency, Orakzai was landlocked, bordered by Khyber, Kurram, and the settled districts of Kohat and Hangu. Its administrative seat was historically located in Hangu, reflecting the complex geography of the region.^{4 5}

THE SEVEN AGENCIES OF FATA



“Orakzai was the only landlocked agency without a direct border with Afghanistan.”

“The administrative structure of FATA: Orakzai within the Seven Agencies.”

THE 2018 MERGER (25TH AMENDMENT)

The historical status of FATA ended in ****May 2018**** with the passage of the ****25th Constitutional Amendment****. This landmark reform repealed Article 247, merged FATA into Khyber Pakhtunkhwa, and integrated the former agencies into the provincial administrative and judicial system. Orakzai Agency became ****Orakzai District****, marking the transition from a "special" frontier status to full provincial integration.^{2 7}



“The constitutional transition from Agency to District status.”

Constitutional integration is a legal event; administrative and social integration is a process. While the merger changed the legal framework, customary institutions like the **Jirga** and local tribal identities continue to play a role in community life. The transition from Political Agent to District Administration represents a shift in the state's presence—from managing a frontier to serving a district.⁷

CATEGORY	BEFORE 2018 (FATA)	AFTER 2018 (KP)
ADMINISTRATION	Political Agent (Federal)	Deputy Commissioner (Provincial)
LEGAL SYSTEM	Frontier Crimes Regulation	Ordinary Courts / High Court
REPRESENTATION	NA / Senate Only	NA / Senate / Provincial Assembly
CONSTITUTIONAL	Article 247	Repealed / Full Integration

AUTHOR'S REFLECTION

History often becomes clearer when we stop asking whether a system was simply good or bad and begin asking how it actually worked. The Tribal Areas were neither a world completely separate from Pakistan nor a region administered exactly like the settled districts. They were part of Pakistan through a distinctive constitutional and administrative arrangement. For Orakzai, that arrangement shaped political life for generations. The 2018 constitutional changes opened another chapter. But constitutional integration is only one part of history. Institutions must reach communities, laws must become understandable, and citizens must experience the state not only as an idea, but as an everyday institution. The story of the Tribal Areas is therefore a story of relationship—between state and society, custom and law, and history and change.

“THE TRIBAL AREAS WERE NEVER OUTSIDE PAKISTAN. THEY WERE PART OF A DISTINCT ARRANGEMENT.”

